

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Purchased:

-----X
RONNIE LEWIS,

SUMMONS

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK AND POLICE OFFICER DANIEL
LEE, TAX ID NO [REDACTED]

Plaintiff designates
Bronx County as
the place of trial.

Defendants.

The basis of venue is:
Location of Occurrence

-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 22, 2016

Yours, etc.



TALKIN, MUCCIGROSSO & ROBERTS, LLP
Attorneys for Plaintiff, Ronnie Lewis
40 Exchange Place, 18th Floor
New York, New York 10005
212-482-0007
Our File No. 12103B008

To:
City of New York
100 Church Street, 4th Floor
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer Daniel Lee Tax ID [REDACTED]
Intelligence MSS Uniformed Operations
c/o New York City Police Department
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RONNIE LEWIS,

Date Purchased:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK AND POLICE OFFICER
DANIEL LEE TAX ID NO. [REDACTED],

Index No.:

Defendant.

-----X

Plaintiff, Ronnie Lewis, by his attorneys, TALKIN, MUCCIGROSSO & ROBERTS, LLP, complaining of the Defendants, THE CITY OF NEW YORK, respectfully alleges the following upon information and belief:

1. At all times hereinafter mentioned, Plaintiff, Ronnie Lewis, was and still is a resident of Bronx County, in the City and State of New York.
2. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, was and still is a municipal corporation duly existing under the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, including all police officers thereof.
4. At all times herein mentioned Defendant, Police Officer Daniel Lee, Tax ID No. [REDACTED], was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York. Police Officer Daniel Lee is sued in his official capacity.
5. On November 23, 2015, Plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.
6. That a statutory 50-h hearing was held on February 5, 2016 and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof.

7. That the Plaintiff has complied with all conditions precedent applicable to the instant action.

AS AND FOR A FIRST CAUSE OF ACTION

8. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “7” above as if fully set forth herein.

9. On August, 27, 2015, at approximately 1:39 a.m., while plaintiff, Ronnie Lewis was lawfully sitting in the park which was in the vicinity of the premises located at 350 East 143rd Street, in the County of the Bronx, in the City and State of New York, Plaintiff was falsely arrested without provocation or justification, by Police Officer Daniel Lee, Tax ID No. [REDACTED], who is employed by Defendant, THE CITY OF NEW YORK.

10. As result of the foregoing, Plaintiff was illegally searched, physically assaulted and suffered a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

11. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

12. Plaintiff, repeats and reiterate each and every allegation contained in paragraphs numbered “1” through “11” above as if fully set forth herein.

13. On August 27, 2015 at approximately 1:39 a.m., while plaintiff Ronnie Lewis, was lawfully sitting in the park which was in the vicinity of the premises located at 350 East 143rd Street, in the County of the Bronx, in the City and State of New York. Plaintiff was assaulted and illegally physically searched without provocation or justification, by Police Officer Daniel Lee, Tax ID No. [REDACTED] employed by Defendant, THE CITY OF NEW YORK.

14. As result of the foregoing, Plaintiff was illegally searched, physically and assaulted and suffered a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

15. As a result of the foregoing, Plaintiff, demands judgment against Defendants in a sum of money

which exceeds the jurisdictional limits of all lower Courts

AS AND FOR A THIRD CAUSE OF ACTION

16. Plaintiff, repeats and reiterate each and every allegation contained in paragraphs numbered “1” through “15” above as if fully set forth herein.

17. On August 27, 2015, at approximately 1:39 a.m., while plaintiff, Ronnie Lewis was lawfully sitting in the park which was in the vicinity of the premises located at 350 East 143rd Street, in the County of the Bronx, in the City and State of New York. Plaintiff was wrongfully detained and arrested without provocation or justification, by police officer Daniel Lee, Tax ID No [REDACTED], employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did wrongfully detain the Plaintiff without probable cause, without an arrest warrant and in bad faith.

18. At the aforesaid time and place, Defendants wrongfully arrested, handcuffed, illegally physically searched and detained the Plaintiff, Ronnie Lewis.

19. The Plaintiff, Ronnie Lewis, was subsequently arrested.

20. The criminal charges against the Plaintiff, Ronnie Lewis, were dismissed.

21. In commencing and continuing said wrongful detainment, Defendants caused Plaintiff to be wrongfully arrested and detained in violation Penal Laws of the State of New York and his constitutional rights.

22. At the time of the unlawful imprisonment, Plaintiff had not committed any illegal acts.

23. At the time of Plaintiff unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

24. Plaintiff had not given Defendants probable cause to believe that he had committed any illegal acts.

25. At the time of Plaintiffs’ unlawful imprisonment, Defendants knew or should have known through exercise of proper procedure and reasonable investigation that the aforementioned imprisonment was without justification.

26. Defendants, acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.

27. Defendants willfully and wrongfully accused the Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

28. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

29. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

30. In commencing and continuing said wrongful detainment, Defendants caused Plaintiff to be detained in violation of the Penal Laws of the State of New York and his constitutional rights.

31. At the time of the unlawful arrest and detainment, Plaintiff had not committed any illegal act.

32. At the time of Plaintiff unlawful arrest and detainment, Plaintiff had not committed or attempted to commit any crime.

33. Plaintiff had not given Defendants probable cause to believe that he had committed any illegal acts.

34. At the time of Plaintiffs' unlawful detainment, Defendants knew or should have known through exercise of proper procedure and reasonable investigation that the aforementioned detainment was without justification.

35. Defendants acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.

36. Defendants willfully and wrongfully accused the Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

37. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

38. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

39. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “38” above as if fully set forth herein.

40. On August 27, 2015, at approximately 1:39 a.m. while plaintiff, Ronnie Lewis, was lawfully sitting in the park which was in the vicinity of the premises located at 350 East 143rd Street, in the County of the Bronx, in the City and State of New York. Plaintiff was falsely arrested illegally physically searched handcuffed and wrongfully detained without provocation or justification, by police officer, Daniel Lee, Tax ID No. [REDACTED] employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees.

41. Defendant, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have under similar circumstances.

42. As a result of Defendants’ negligence Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

43. As a result of the forgoing, Plaintiff, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

44. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “43” above as if fully set forth herein.

45. On August 27, 2015, at approximately 1:39 a.m., while Plaintiff, Ronnie Lewis, was lawfully sitting in the park which was in the vicinity of the premises located at 350 East 143rd Street, in, in the County of the Bronx, in the City and State of New York. Defendant, CITY OF NEW YORK, through its agents, servants and /or employees, improperly, forcibly and without warrant right or privilege physically searched and arrested Plaintiff.

46. Plaintiff was illegally physically searched, handcuffed, falsely arrested and detained without provocation or justification by Defendants.

47. Plaintiff was arrested and detained against his will.

48. Said detention was without warrant, probable cause and/or justification.

49. The actions of Defendant, CITY OF NEW YORK, its agents, servants and/or employees heretofore described constitute unlawful arrest and detention and imprisonment and were designed to and did cause a violation of the Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York.

50. Defendants violated Plaintiffs' civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. § 1983, of the U.S. Constitution and the Constitution of the State of New York.

51. The actions of Defendants, heretofore described constitute unlawful detention, imprisonment were designed to and did cause a violation of the Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.

52. That the conduct and action of Defendants acting in concert and under color of State Law in detaining Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without justification, and was designed to and did cause a violation of Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. §1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.

53. Defendants, deprived Plaintiff of his liberty in violation of his civil and constitutional rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York.

54. Defendants were in the vicinity of 350 East 143rd Street, in the County of the Bronx, in the City and State of New York, and without warrant and without probable cause in violation of Plaintiffs' civil rights and constitutional rights as set forth in the Fourth Amendment of the United States Constitution.

55. The actions taken by Defendant, CITY OF NEW YORK's agents, servants and/or employees were undertaken under color of law and would not have existed but for said Defendant, CITY OF NEW YORK's agents, servant and/or employees using their official power.

56. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer a violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

57. As a result of Defendant's impermissible conduct, Plaintiff demand judgment against Defendants in a sum of money which exceed the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

58. Plaintiff repeats and reiterates each and every allegation contained in paragraphs number "1" through "57" above as if fully set forth herein.

59. The supervisors and policy making officer of Defendant, CITY OF NEW YORK and its Police Department as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

60. Defendant, CITY OF NEW YORK, has failed to properly train and effectively train their employees, with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

61. Defendant, CITY OF NEW YORK, hired and retained in its employ certain police officers, including but not limited to Police Officer, Daniel Lee, Tax ID No. [REDACTED] with knowledge that said officer had vicious propensities and were therefore unfit to be police officer.

62. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

63. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

64. Plaintiff repeat and reiterate each and every allegation contained in paragraphs numbered “1” through “63” above as if fully set forth herein.

65. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers, including but not limited to Police Officer, Daniel Lee, Tax ID No. [REDACTED] with knowledge that said police officer lacked the experience to be employed by the aforementioned Defendant, and therefore were unfit to be police officer.

66. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers, including but not limited to, Police Officer Daniel Lee Tax ID No. [REDACTED] with the knowledge that said police officer lacked deportment to be employed by the aforementioned Defendant, and therefore, was unfit to be an officer.

67. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers, with that said officers had vicious propensities and were therefore unfit to be police officers.

68. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

69. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

70. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “69” above as if fully set forth herein.

71. Defendants’ conduct toward Plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

72. Defendants acted with desire to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such distress to said Plaintiff.

73. Defendants acted with utter disregard of the consequences of their actions.

74. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

75. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, and requests compensatory and punitive damages in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, an award for reasonable attorney's fees, cost and disbursements of this action; and such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
November 22, 2016

Yours, etc



TALKIN, MUCCIGROSSO & ROBERTS, LLP
Attorneys for Plaintiff, Ronnie Lewis
40 Exchange Place, 18th Floor
New York, New York 10005
212-482-0007
Our File No. 12103B008

ATTORNEY'S VERIFICATION

Jonathan E. Roberts, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at TALKIN, MUCCIGROSSO & ROBERTS, LLP, attorneys of record for Plaintiff, Ronnie Lewis.

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not presently reside in the county wherein I maintain my offices.

DATED: New York, New York
November 22, 2016

Jonathan E. Roberts

A handwritten signature in black ink, appearing to be 'J. Roberts', is written over a horizontal line. The signature is fluid and cursive.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #:

RONNIE LEWIS,

Plaintiff,

-against-

THE CITY OF NEW YORK AND POLICE OFFICER DANIEL LEE,
TAX ID NO. [REDACTED]

Defendants

SUMMONS AND VERIFIED COMPLAINT

TALKIN, MUCCIGROSSO & ROBERTS, L.L.P.
Attorneys for Plaintiff, Ronnie Lewis
40 Exchange Place, 18th Floor
New York, New York 10005
(212) 482-0007

To:
Attorney(s) for
Service of a copy of the within is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

NOTICE OF
ENTRY



That the within is a (certified) true copy of a
Entered in the office of the Clerk of the within named
Court on 20.

NOTICE
OF
SETTLEMENT



That an Order of which the within is a true copy will be
Presented to the Hon. , one of the
judges of the within named Court, at

, New York , on 20,

Dated:

TALKIN, MUCCIGROSSO & ROBERTS, L.L.P.
Attorneys for Plaintiff
40 Exchange Place, Suite 1800
New York, New York 10005